

26STCV11373 26STCV11373

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 6, 2026

CASE NUMBER

26STCV11373

MOTION

Motion to Compel Arbitration

MOVING PARTIES

Defendants Move,

Inc., David Liebovitch, Quan Dinh, Elizabeth Larkin, and Samy Tyby

OPPOSING PARTIES

Plaintiffs Christian Valiando, Taylor Williams, Drew

Reischl, Natalie Webb, and Marques Ridley

MOTION

Defendants

Move, Inc. ("Move"), David Liebovitch, Quan Dinh, Elizabeth Larkin, and Samy Tyby (collectively, "Defendants") move to compel arbitration of the claims Plaintiffs Christian Valiando, Taylor Williams, Drew Reischl, Natalie Webb, and Marques Ridley ("Plaintiffs") assert against Defendants. Plaintiffs oppose the motion.

ANALYSIS

The moving party

on a petition to compel arbitration "bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination."

(Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842, internal quotations and citations omitted.)

Defendants advance

arbitration agreements Plaintiffs signed when Plaintiffs worked for Move. Those agreements provides Plaintiffs and Move agree to "resolve by final and binding arbitration any and all disputes, claims, or controversies of any kind or nature arising out of or related to [Plaintiffs'] employment with [Move]" (See, e.g., Declaration of Kat Koutsantonis in Support of Motion to Compel Arbitration, Exhibit A.) Accordingly, Move has met its burden to show an agreement to arbitrate covers Plaintiffs' claims. While the other Defendants are not parties to the arbitration agreement, they are, nonetheless, entitled to enforce it. (Dryer v. Los Angeles Rams (1985) 40 Cal.3d 406, 418.)

Plaintiffs argue the agreements to arbitrate are unenforceable. However, the arbitration agreements further provide "the arbitrator shall have the exclusive authority and jurisdiction to resolve any issues relating to the formation, validity, or enforceability of this Agreement; and whether a Claim is subject to arbitration under this Agreement." (See,

e.g., Koutsantonis Decl., Exhibit A.) Thus, Plaintiffs and Defendants delegated the issue of the enforceability of the agreement to the arbitrator. (Hartley v. Superior Court (2011) 196 Cal.App.4th 1249, 1258.) Therefore, Plaintiffs must raise these arguments in arbitration.

Plaintiffs next contend the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (EFAA), which became law on March 3, 2022, bars arbitration of Plaintiffs' claims. The arbitration agreements specify the Court must resolve the issue of whether this law bars arbitration of Plaintiffs' claims. The arbitration agreements Plaintiffs signed also specify the Federal Arbitration Act (FAA) governs. A choice of law provision in an arbitration agreement is enforceable. (Coopers & Lybrand v. Superior Court (1989) 212 Cal.App.3d 524, 538.) As such, the FAA does apply in this instance.

The EFAA amends the FAA to provide, "at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement . . . shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute." (9 U.S.C. § 402(a).) For purposes of this law, a sexual assault dispute is "a dispute involving a nonconsensual sexual act or sexual contact . . . , including when the victim lacks capacity to consent . . . ," and a sexual harassment dispute is "a dispute relating to conduct that is . . . alleged to constitute sexual harassment under applicable Federal, Tribal, or State law. (9 U.S.C. § 401(3)-(4).)

In the operative complaint, Plaintiffs do not assert claims for sexual harassment or sexual assault. Rather, Plaintiffs allege, "African-American, women and disabled employees sometimes . . . were treated in an inequitable, unfair, discriminatory and disparate manner due to their protected status" (Complaint, ¶ 29.) To state a claim for sexual harassment, Plaintiffs must allege Defendants subjected Plaintiffs to "sexual propositions, unwarranted graphic discussion of sexual acts, and commentary on the employee's body and the sexual uses to which it could be put . . . ," or that "an employer created a hostile environment for an employee because of that employee's sex." (Mogilefsky

v. Superior Court (1993) 20 Cal.App.4th 1409, 1415.) Plaintiffs' allegations are of discrimination against them "in compensation

or in terms, conditions, or privileges of employment . . . ," not

harassment. (Gov. Code, § 12940, subd.

(a).) While Plaintiffs' complaint

contains passing references to harassment offered by only two of the Plaintiffs

(Valiando and Webb), the complaint is devoid of factual allegations of

harassment based on sex.

Accordingly, the EFAA is not implicated, and it does not bar arbitration of Plaintiffs' claims.

CONCLUSION AND ORDER

Defendants' motion to compel

Plaintiffs to arbitrate is granted. This

case is stayed pending arbitration. The

Court sets an order to show case regarding status of arbitration to be heard on

August 6, 2027.

Defendants are ordered to provide notice of

the Court's ruling and to file proof of service of same.